

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

SM LINE CORPORATION,

RESPONDENT.

**COMPLAINANT SAMSUNG ELECTRONICS AMERICA, INC.'S
MOTION FOR CONFIDENTIAL TREATMENT**

Complainant Samsung Electronics America, Inc. ("SEA"), by and through its attorneys Holland & Knight LLP, hereby move pursuant to the Federal Maritime Commission's ("FMC" or the "Commission") April 21, 2023 Initial Order and 5(b) of the Federal Maritime Commission's Rules of Practice and Procedure (the "Rules" or individually, "Rule"), 46 C.F.R. 502.5(b), for confidential treatment of the Declaration of Hyun Yoon in Support of SEA's Motion to Quash Notice of Deposition or, In the Alternative, For a Protective Order ("Yoon Declaration").

Confidentiality is necessary because the exhibits to the Yoon Declaration contain and reference confidential information related to SM Line Corporation and SEA, including SM Line's

Service Agreements and Service Contracts. The exhibits to the Yoon Declaration also reveal the identities and contact information for certain third parties.

Pursuant to Rule 5(b), SEA will file both a confidential and public version of the Yoon Declaration. For the foregoing reasons, SEA respectfully requests that the materials and exhibits designated as confidential in the Yoon Declaration, be kept confidential and not disclosed to the public.

Respectfully Submitted,

Dated: January 12, 2024

/s/ Chris Nolan

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: January 12, 2024

/s/ Kristine Little